ELKE & MERCHANT LLP
TOM H. ELKE (SBN 241187)
ALEXANDER MERCHANT (SBN 252252)
870 Market Street, Suite 1140
San Francisco, California 94102
Telephone: (415) 294-4111
Email: alex@elkemerchant.com

Attorneys for Plaintiffs

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
01/02/2024
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

ELKE & MERCHANT LLP
870 Market Street, Suite 1140
San Francisco, California 94102

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

JEREMY BERENS and PATRICIA SZAFRANSKI-BERENS, Plaintiffs, v. ADAM BRADY; EMMA BRADY; and DOES 1 to 30, Defendants.	Case No.: **CGC-24-611337** (Unlimited Civil Case) COMPLAINT DEMAND FOR JURY TRIAL

Plaintiffs JEREMY BERENS and PATRICIA SZAFRANSKI-BERENS allege:

1. At all times relevant hereto, Plaintiff JEREMY BERENS was a resident of California and was over the age of eighteen.

2. At all times relevant hereto, Plaintiff PATRICIA SZAFRANSKI-BERENS was a resident of California and was over the age of eighteen.

3. Plaintiff JEREMY BERENS and Plaintiff PATRICIA SZAFRANSKI-BERENS are sometimes referred to herein collectively as "Plaintiffs".

4. Upon information and belief, at all times relevant hereto, Defendant ADAM BRADY was a resident of the State of Colorado and was over the age of eighteen.

5. Upon information and belief, at all times relevant hereto, Defendant EMMA BRADY was a resident of the State of Colorado and was over the age of eighteen.

6. Plaintiffs are ignorant of the true names, involvement, or capacities of Defendants DOES 1 through 30. Plaintiffs are informed and believe that each DOE Defendant is in some way responsible for Plaintiffs' damages. Plaintiffs will amend this complaint when Plaintiffs learn the true names of the DOE Defendants.

7. Defendant ADAM BRADY, Defendant EMMA BRADY, and Defendant DOES 1 through 30 are referred to collectively as "Defendants".

8. At all times relevant herein, each Defendant was the agent, servant, employee, or alter ego of the remaining Defendants, or acted with their consent, ratification, and authorization, and in doing the acts hereinafter alleged, each Defendant acted in such capacity with respect to the remaining Defendants.

9. This Court is the proper jurisdiction for this complaint because Plaintiffs resided in its jurisdictional area during the events that give rise to this action, the Subject Unit is in its jurisdictional area, and Defendants injured Plaintiffs in its jurisdictional area.

10. The amount in controversy is within the jurisdiction of this Court.

11. This dispute involves the unit located at 1110 Church Street, San Francisco, California (hereinafter, the "Subject Unit"). The Subject Unit is a rental unit as that term is defined in San Francisco Residential Rent Stabilization and Arbitration Ordinance ("SFRO") section 37.2(r). The Subject Unit is located in the four-unit building located at 1108-1110-1112-1114 Church Street, San Francisco (the "Subject Property").

12. At all times relevant hereto until on or about December 1, 2023, Defendants were owners of the Subject Property, including the Subject Unit. At all times relevant hereto, Defendants were the property managers for the Subject Property.

13. At all times relevant hereto, Defendants were Plaintiffs' landlords for the Subject Unit as that term is defined in SFRO section 37.2(h) and under California statutory law and common law.

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14. At all times relevant hereto, the Subject Unit and Plaintiff's tenancy in the Subject Unit were subject to the eviction protections, rent increase limitations, and anti-harassment protections of the SFRO.

15. On or about December 18, 2019, Plaintiff JEREMY BERENS entered into a written lease with Defendants for Plaintiffs to rent the Subject Unit. Defendant ADAM BRADY signed the written lease. When Defendant ADAM BRADY signed the written lease, he was acting on behalf of Defendants. Plaintiff PATRICIA SZAFRANSKI-BERENS was a third-party beneficiary of the lease. Defendants were fully aware that Plaintiff PATRICIA SZAFRANSKI-BERENS intended to occupy the Subject Unit with Plaintiff JEREMY BERENS at the inception of the tenancy. The lease term commenced on January 17, 2020 and ended on July 31, 2021. The initial monthly rent was $3,600, which included water and garbage services.

16. At all times relevant hereto while they occupied the Subject Unit, Plaintiffs were tenants in the Subject Unit.

17. The written lease did not include any disclosures relating to the potential or actual presence of lead in the Subject Unit or the Subject Property.

18. Plaintiffs moved in promptly after the lease term commenced.

19. On January 5, 2023, Plaintiffs' baby was born. Plaintiffs were concerned about the potential presence of lead in the Subject Unit. There was chipping paint throughout the Subject Unit.

20. Plaintiff PATRICIA SZAFRANSKI-BERENS contacted the San Francisco Department of Public Health Lead Program to schedule an inspection.

21. On or about July 10, 2023, an inspector from the San Francisco Department of Public Health inspected the Subject Unit. Upon seeing the chipping paint throughout the unit, the inspector quickly determined that it was extremely likely there was lead in the Subject Unit. The inspector took samples from areas throughout the apartment for further testing. The inspector suggested taping the chipping areas as a stopgap measure while waiting for the test results.

22. The paint in the Subject Unit contained lead throughout Plaintiffs' tenancy. Plaintiffs and their baby were exposed to lead in the Subject Unit, in part, through exposure to

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lead-contaminated chipping paint and lead-contaminated paint dust. Defendants knew or should have known there was lead in the Subject Unit, that there was lead-contaminated chipping paint and lead-contaminated paint dust, and that Plaintiffs and their child would be improperly exposed to lead in the Subject Unit.

23. Plaintiffs were extremely concerned about the presence of lead in the Subject Unit and in the chipping paint and lead dust.

24. Plaintiffs promptly taped all areas where paint was chipping or where friction could cause more chipping and/or dust.

25. Plaintiffs received a call from the inspector, who informed Plaintiffs that some of the samples tested positive for lead. The inspector informed Plaintiffs that the Department of Public Health would issue a Notice of Violation to Defendants regarding the lead hazard in the Subject Unit.

26. On or about July 17, 2023, the San Francisco Department of Public Health issued a Notice of Violation ("NOV") relating to the lead hazard in the Subject Unit. The NOV stated that "[l]ead hazards" were found in the Subject Unit. The NOV stated that "These lead hazards are public nuisances (Section 581(b)(10) of the San Francisco Health Code)." The NOV informed Defendants to "Eliminate the lead-contaminated dust on the fireplace tiles in the front room" and to "Eliminate the lead-based paint hazards listed below", including "Any building parts with deteriorated paint." The NOV informed Defendants that there was lead dust on the windowsill in the living room and that the lead dust was readily accessible to children.

27. The NOV was sent to Plaintiffs and Defendants.

28. The elevated lead levels, lead-contaminated chipping paint, and lead-contaminated paint dust in the Subject Unit endangered Plaintiffs and their baby. Plaintiffs suffered severe emotional distress because of the exposure and potential exposure to dangerous elevated lead levels, lead-contaminated chipping paint, and lead-contaminated paint dust in the Subject Unit. Plaintiff PATRICIA SZAFRANSKI-BERENS had developed anxiety and obsessive-compulsive disorder while pregnant, which increased her anxiety related to dangers Plaintiffs' baby would be exposed to.

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29. The risk of staying in the Subject Unit with their baby was too great. Plaintiffs immediately began searching for a new home. Plaintiffs looked for apartments throughout the Bay Area.

30. On or about August 5, 2023, Plaintiffs informed Defendants that they would be moving out.

31. On or about August 29, 2023, Plaintiffs signed a lease for a new apartment. The rent for Plaintiffs' new apartment was $5,750 per month, which was substantially more than their rent for the Subject Unit when they vacated. Plaintiffs made sure that their new apartment did not have lead contamination.

32. Plaintiffs vacated the Subject Unit on or about October 2, 2023.

33. At the time Plaintiffs vacated, Plaintiffs' rent for the Subject Unit was substantially below market rate rent.

34. As a result of Defendants' acts, Plaintiffs were forced to vacate the Subject Unit.

35. Defendants did these acts in bad faith.

36. Promptly after Plaintiffs vacated, on or about December 1, 2023, Defendants sold the Subject Property.

37. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

38. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

39. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

FIRST CAUSE OF ACTION FOR

NEGLIGENCE

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

40. Plaintiffs re-allege the foregoing paragraphs.

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41. Defendants owed a duty of care to Plaintiffs as Plaintiffs' landlords and property managers.

42. Defendants breached that duty by doing the acts described above, including: failing to properly maintain the unit in a safe and habitable condition; failing to include in the written lease any disclosures relating to the potential or actual presence of lead in the unit; failing to disclose to Plaintiffs that there was lead in the unit; allowing lead-contaminated chipping paint and lead-contaminated paint dust in the unit; allowing Plaintiffs and their child to be exposed to lead in the Subject Unit, in part, through exposure to lead-contaminated chipping paint and lead-contaminated paint dust; failing to remedy the lead-contaminated chipping paint and lead-contaminated paint dust; and allowing and creating a condition that forced Plaintiffs to vacate; among other acts.

43. Defendants' acts and omissions were in violation of the following laws: 42 U.S.C. 4852d; 42 U.S.C. 1018; Civil Code sections 1927, 1941, and 1941.1; Health and Safety Code sections 17920.10 and 17920.3; San Francisco Health Code section 581(b)(10); and SFRO section 37.10B; among others.

44. These laws are designed to protect Plaintiffs from the very harms complained about herein. All of these laws were in effect at all relevant times in this complaint.

45. Defendants' violations of these laws were a substantial factor in causing harm to Plaintiffs.

46. Defendants' acts and omissions in breach of this duty of care were a substantial factor in causing harm to Plaintiffs.

47. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

48. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

49. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

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San Francisco, California 94102

SECOND CAUSE OF ACTION FOR

NUISANCE

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

50. Plaintiffs re-allege the foregoing paragraphs.

51. Defendants, by acting and failing to act, created a condition that was harmful to health, indecent and offensive to the senses, and an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life and property.

52. By acting and failing to act, Defendants created a condition that interfered with Plaintiffs' comfortable use and enjoyment of the Subject Unit.

53. Plaintiffs did not consent to Defendants' acts and failures to act.

54. There was no public benefit to Defendants' conduct.

55. An ordinary person would be reasonably annoyed and disturbed by Defendants' conduct.

56. Defendants' conduct was a substantial factor in causing Plaintiffs' harm.

57. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

58. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

59. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

THIRD CAUSE OF ACTION FOR

TORTIOUS BREACH OF THE WARRANTY OF HABITABILITY

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

60. Plaintiffs re-allege the foregoing paragraphs.

61. Plaintiffs leased the Subject Unit from Defendants, or were third party beneficiaries under the lease.

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62. Implied in Plaintiffs' lease is a warranty of habitability, wherein Defendants promised to inspect and maintain the Subject Unit in a clean, safe, and habitable condition free from defective conditions.

63. Defendants breached the warranty of habitability by doing the following: failing to properly maintain the unit in a safe and habitable condition; failing to include in the written lease any disclosures relating to the potential or actual presence of lead in the unit; failing to disclose to Plaintiffs that there was lead in the unit; allowing lead-contaminated chipping paint and lead-contaminated paint dust in the unit; allowing Plaintiffs and their child to be exposed to lead in the Subject Unit, in part, through exposure to lead-contaminated chipping paint and lead-contaminated paint dust; failing to remedy the lead-contaminated chipping paint and lead-contaminated paint dust; and allowing and creating a condition that forced Plaintiffs to vacate; among other acts.

64. Plaintiffs met all their obligations under the lease, or were excused from doing so.

65. Plaintiffs notified Defendants of all the defective conditions at the Subject Unit and/or Defendants actually knew or should have known with reasonable diligence about all of the defective conditions at the Subject Unit.

66. Defendants ignored all of the defective conditions, failed to repair the defective conditions, or negligently repaired the defective conditions.

67. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

68. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

69. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

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FOURTH CAUSE OF ACTION FOR

TORTIOUS BREACH OF THE COVENANT OF QUIET ENJOYMENT

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

70. Plaintiffs re-allege the foregoing paragraphs.

71. Plaintiffs leased the Subject Unit from Defendants, or were third party beneficiaries under the lease.

72. Implied in Plaintiffs' residential lease for the Subject Unit is a covenant of quiet enjoyment.

73. Defendants substantially breached this implied covenant of quiet enjoyment by doing the following: failing to properly maintain the unit in a safe and habitable condition; failing to include in the written lease any disclosures relating to the potential or actual presence of lead in the unit; failing to disclose to Plaintiffs that there was lead in the unit; allowing lead-contaminated chipping paint and lead-contaminated paint dust in the unit; allowing Plaintiffs and their child to be exposed to lead in the Subject Unit, in part, through exposure to lead-contaminated chipping paint and lead-contaminated paint dust; failing to remedy the lead-contaminated chipping paint and lead-contaminated paint dust; and allowing and creating a condition that forced Plaintiffs to vacate; among other acts.

74. Plaintiffs met all their obligations under the lease, or were excused from doing so.

75. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

76. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

77. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

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FIFTH CAUSE OF ACTION FOR

VIOLATION OF SECTION 37.10B OF THE SAN FRANCISCO RESIDENTIAL RENT STABILIZATION AND ARBITRATION ORDINANCE

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

78. Plaintiffs re-allege the foregoing paragraphs.

79. Under Section 37.10B(a) of the SFRO, no landlord, and no agent, contractor, subcontractor or employee of the landlord shall do any of fourteen enumerated acts in bad faith.

80. Under Section 37.10B(c)(5) of the SFRO, any person who violates or aids or incites another person to violate Section 37.10B is liable for each and every such offense for money damages of not less than three times actual damages, or for statutory damages in the sum of one thousand dollars, whichever is greater.

81. Defendants violated Section 37.10B, or aided or incited another person to violate Section 37.10B, by: (1) interrupting, terminating or failing to provide housing services required by contract or by State, County or local housing, health or safety laws; (2) failing to perform repairs and maintenance required by contract or by State, County or local housing, health or safety laws; (3) failing to exercise due diligence in completing repairs and maintenance once undertaken or failing to follow appropriate industry repair, containment or remediation protocols designed to minimize exposure to noise, dust, lead, paint, mold, asbestos, or other building materials with potentially harmful health impacts; and (4) other repeated acts or omission of such significance as to substantially interfere with or disturb the comfort, repose, peace or quiet of any person lawfully entitled to occupancy of such dwelling unit and that cause, are likely to cause, or are intended to cause any person lawfully entitled to occupancy of a dwelling unit to vacate such dwelling unit or to surrender or waive any rights in relation to such occupancy.

82. Defendants' actions in violation of Section 37.10B of the Rent Ordinance include: failing to properly maintain the unit in a safe and habitable condition; failing to include in the written lease any disclosures relating to the potential or actual presence of lead in the unit; failing to disclose to Plaintiffs that there was lead in the unit; allowing lead-contaminated chipping paint and lead-contaminated paint dust in the unit; allowing Plaintiffs and their child to be exposed to

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lead in the Subject Unit, in part, through exposure to lead-contaminated chipping paint and lead-contaminated paint dust; failing to remedy the lead-contaminated chipping paint and lead-contaminated paint dust; and allowing and creating a condition that forced Plaintiffs to vacate; among other acts.

83. Defendants did these acts, or aided or incited another person to do these acts.

84. Defendants did these acts in bad faith.

85. Plaintiffs are entitled to not less than three times the amount of actual damages and the recovery of attorneys' fees and costs for prosecuting this cause of action.

86. Defendants acted in knowing violation of or in reckless disregard of the protections of the SFRO. Consequently, Plaintiffs are entitled to treble damages for mental or emotional distress.

87. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

88. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

89. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

SIXTH CAUSE OF ACTION FOR

CONSTRUCTIVE EVICTION

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

90. Plaintiffs re-allege the foregoing paragraphs.

91. Plaintiffs leased the Subject Unit from Defendants, or were third party beneficiaries under the lease.

92. Plaintiffs met all their obligations under the lease or were excused from so doing.

93. Defendants owed a duty of care to Plaintiffs as Plaintiffs' landlords and property managers.

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94. Defendants breached the lease and breached their duty of care doing the acts described above, including: failing to properly maintain the unit in a safe and habitable condition; failing to include in the written lease any disclosures relating to the potential or actual presence of lead in the unit; failing to disclose to Plaintiffs that there was lead in the unit; allowing lead-contaminated chipping paint and lead-contaminated paint dust in the unit; allowing Plaintiffs and their child to be exposed to lead in the Subject Unit, in part, through exposure to lead-contaminated chipping paint and lead-contaminated paint dust; failing to remedy the lead-contaminated chipping paint and lead-contaminated paint dust; and allowing and creating a condition that forced Plaintiffs to vacate; among other acts.

95. Defendants' acts and omissions were disturbances and/or interferences with Plaintiffs' possession of the premises and rendered the premises unfit for the purposes for which it was leased, or had the effect of depriving Plaintiffs of the beneficial enjoyment or use of the premises.

96. As a result of Defendants' acts and omissions, Plaintiffs were forced to abandon the Subject Unit.

97. As a result of Defendants' acts, Plaintiffs suffered from property loss, monetary loss, loss of use and enjoyment of a rental apartment, loss of a rent-controlled apartment, loss of wages and/or earning capacity, and moving costs.

98. As a result of Defendants' acts, Plaintiffs suffered severe emotional distress, including annoyance, mental anguish, sleeplessness, anxiety, worry, fear, and discomfort.

99. Defendants' conduct warrants an award of punitive damages because Defendants are guilty of malice, oppression, or fraud in the commission of the conduct described herein.

SEVENTH CAUSE OF ACTION FOR

VIOLATION OF BUSINESS AND PROFESSIONS CODE SECTION 17200 ET SEQ.

BY ALL PLAINTIFFS AGAINST ALL DEFENDANTS

100. Plaintiffs re-allege the foregoing paragraphs.

101. Defendants owned and managed the Subject Unit as a residential rental property. Defendants were in the business of landlording and property management.

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102. Defendants engaged in unlawful and unfair business practices by violating various laws, including 42 U.S.C. 4852d; 42 U.S.C. 1018; Civil Code sections 1927, 1941, and 1941.1; Health and Safety Code sections 17920.10 and 17920.3; San Francisco Health Code section 581(b)(10); and SFRO section 37.10B; among others.

103. As a result of Defendants' unfair business practices, Defendants unjustly received the benefit of rent payments in excess of the value of the rental unit. Plaintiffs seek reimbursement of rent paid.

104. The remedies provided by Business and Professions Code section 17200 et seq. are cumulative to each other and to the remedies or penalties available under all other laws of the State of California. (Bus. & Prof. Code, §17205.)

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WHEREFORE, Plaintiffs pray for judgment against Defendants as follows:

1. For general damages;
2. For special damages according to proof;
3. For prejudgment interest on the amount of any damages awarded;
4. For damages for emotional distress under applicable causes of actions;
5. For contractual damages under applicable causes of action;
6. For attorney fees, expert witness fees, and costs pursuant to law, statute, or contract under applicable causes of action;
7. For statutory damages;
8. For trebling of damages under applicable causes of action;
9. For statutory penalties under applicable causes of action;
10. For punitive damages under applicable causes of action; and
11. For such other and further relief as the court may deem just and proper.

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ELKE & MERCHANT LLP
870 Market Street, Suite 1140
San Francisco, California 94102

Dated: December 31, 2023

ELKE & MERCHANT LLP

Alexander Merchant
Attorney for Plaintiffs

ELKE & MERCHANT LLP
870 Market Street, Suite 1140
San Francisco, California 94102

PLAINTIFFS HEREBY REQUEST A JURY TRIAL

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Dated: December 31, 2023

ELKE & MERCHANT LLP

Alexander Merchant
Attorney for Plaintiffs

ELKE & MERCHANT LLP
870 Market Street, Suite 1140
San Francisco, California 94102